

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CLPT071521: IN THE MATTER OF: THOMPSON-ALLEN COMPANY, LLC
09/02/2026 in Department 41
Petition for Injunctive Relief Pursuant to Civ. Code 798.88**

Below is the Court's tentative decision with respect to the matter on calendar. The Court may adopt, modify, or change the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

If you wish to submit on the Court's tentative decision without appearing, please send an email to the following address by 8:00 a.m. on the date of the hearing with counsel for all parties copied on your email: courtroom41@ventura.courts.ca.gov. Please state on the subject line of your email: "SUBMISSION ON TENTATIVE", Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative decision is subject to change.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the Court. A "notice of ruling" in lieu of this procedure is not authorized.

The Court intends to rule as follows:

The Court DENIES Petitioner Thompson-Allen Company's Petition for Injunctive Relief Pursuant to Code of Civil Procedure section 798.88.

Civil Code section 798.88 requires that the hearing must occur within 15 days after the petition is filed. (Civ. Code, § 798.88, subd. (d).) Here, the hearing is on September 1, 2026, 16 days after the filing date of August 17, 2026. Petitioner Thompson-Allen Company also mailed the notice of hearing a mere seven calendar days before the hearing.

Leaving aside the procedural defects, the petition must be denied on its merits. Civil Code section 798.88, subdivision (d), requires clear and convincing evidence of the existence of a continuing or recurring violation of a rule or regulation of the mobilehome park. Here, the three Seven-Day Notices were sent on July 25, 2025, August 14, 2025, and September 29, 2025, respectively. The updated pictures of violations were taken in October 2025. The Petition was filed on August 17, 2026, ten months after October 2025. Although the verified Petition asserted that the violations are ongoing and continue to exist, the assertion is conclusory. Petitioner did not state how it knows that the violations are ongoing or provide any evidence of same. The ten-month lapse before filing the petition interrupts the clear proof required for a continuing or recurring violation. Accordingly, the Court denies the motion without prejudice.

Notice to be provided by the Court.

I. Background

On August 17, 2026, Petitioner Thompson-Allen Company, LLC, dba Ventu Park Villa (“Petitioner”) filed the instant Petition for Injunctive Relief (the “Petition”) against respondents Peter Choquette and Malivan Choquette (“Respondents”), pursuant to Code of Civil Procedure section 798.88. The Petition alleges as follows.

Respondents are the owners of a mobilehome located in Ventu Park Villa at 107 Madonna Lane, Newbury Park, CA 91320, pursuant to a Rental Agreement that commenced on September 1, 2019. Respondents have failed to comply with the Park’s Rules on numerous occasions and have engaged in continued and recurring violations of multiple Rules.

On July 25, 2025, Petitioner served Respondents with a Seven-Day Notice for them to comply with Park Rule 11(A), 11(D), and Title 25 § 1120. (Civ. Code § 798.56, subd. (d).) The July 25, 2025 Notice concerned Respondents’ failure to remove all rubbish, waste items, building materials, and personal property around the home and homesite; cease and desist bringing any additional refuse, rubbish, trash, and or waste material to the premises; and comply with the Rental Agreement. Respondents failed to comply with the July 25, 2025, Notice.

On August 14, 2025, Petitioner served Respondents with another Seven-Day Notice under Civil Code section 798.56, subdivision (d). The August 14, 2025 Notice concerned Respondents’ failure to move the workbench located within three feet of a structure inside an approved storage shed or into the home; place all concrete blocks and stacked pavers currently on the lot inside an approved storage shed or into the home; remove the paneling installed on the home which is not to code as noted in an HCD violation for lacking a water barrier and permit; remove the ladders stored on top of the shed roof and refrain from storing any items outside or on top of the shed at any time; remove the brown illegal structure located at the rear of the lot on the carport side of the home, including all pavers, debris, and any other materials in that area. Respondents failed to comply with the August 14, 2025, Notice.¹

On September 29, 2025, Petitioner served Respondents with a third Seven-Day Notice under Civil Code section 798.56, subdivision (d). The September 29, 2025 Notice concerned failure to remove all refuse, rubbish, debris, tools, furniture, and other items stored outside, including on patios, decks, stairways, driveways, the rear yard, carport, and around the mobile home; remove or properly store all combustible and flammable materials, including wood, panels, buckets, containers and similar items that are stored near structures or under the carport; remove all items stored on top of sheds or exterior structures and refrain from storing any items in these areas in the future; clear the carport area of all stored materials and items and limit its use to vehicle parking and other permitted uses. Respondents failed to comply with the September 29, 2025, Notice.

¹The Petition refers to the Notice as the “May 15, 2025 Notice” on page 3, ¶ 11. This appears to be a scrivener’s error. The same type of error appears in the Notice served on September 29, 2025. (Exh. 8.) The Petition refers to the Notice as the “June 12, 2025 Notice” on page 4, ¶ 14.

Respondents' violations of the Park's Rules are ongoing and continue to exist. On October 16, 2025, Petitioner took updated photographs of the space, reflecting the continuous rule violations. Respondents continue to be in violation of the Park Rules and Regulations set forth above.

Petitioner, as an alternative to evicting Respondent(s) from the Park, seeks an order enjoining Respondents from continued violations of the Rental Agreement and the Park's Rules and Regulations.

The Petition does not include any evidence or information subsequent to October 16, 2025.

II. Discussion

A. Procedural Analysis

Civil Code section 798.88 does not specify a time by which the notice of hearing must be served. The section only specifies that the hearing must occur within 15 days after the petition is filed. (Civ. Code, § 798.88, subd. (d).) Further, if a TRO is issued, subdivision (c) requires that the TRO, petition, and notice of hearing to be personally served on the respondent.

Here, the Petition was filed on August 17, 2026, and this hearing is on September 2, 2026, which is 16 days after filing. Further, Petitioner served the notice of hearing by mail on August 26, 2026, which makes the notice period a mere five court days (seven calendar days) before the hearing. This timeframe appears quite short, similar to an *ex parte* proceeding.

There appears to be no published cases dealing with the required notice under Civil Code section 798.88. In an unpublished case, *Crestview Mobile Home Estates v. Baca*, 2019 WL 7161804, the trial court took the hearing off calendar when the hearing was scheduled more than 15 days after the filing of the petition and ordered the petitioner to file an amended petition with a timely hearing date. The court also ordered the petitioner to personally serve the respondent on the same date as the filing date. Although not binding authority, this case offers persuasive support for this Court's position that the Petition should have a timely hearing date and that Petitioner must personally serve Respondents on the same date as the filing date in order to satisfy the procedural requirements of Civil Code section 798.88.

B. Substantive Analysis

1. Legal Standards

Civil Code section 798.88 provides:

(a) In addition to any right under Article 6 (commencing with Section 798.55) to terminate the tenancy of a homeowner, any person in violation of a reasonable rule or regulation of a mobilehome park may be enjoined from the violation as provided in this section.

(b) A petition for an order enjoining a continuing or recurring violation of any reasonable rule or regulation of a mobilehome park may be filed by the management thereof within the limited jurisdiction of the superior court of the county in which the mobilehome park is located. At the time of filing the petition, the petitioner may obtain a temporary restraining order in accordance with subdivision (a) of Section 527 of the Code of Civil Procedure. A temporary order restraining the violation may be granted, with notice, upon the petitioner's affidavit showing to the satisfaction of the court reasonable proof of a continuing or recurring violation of a rule or regulation of the mobilehome park by the named homeowner or resident and that great or irreparable harm would result to the management or other homeowners or residents of the park from continuance or recurrence of the violation.

(c) A temporary restraining order granted pursuant to this subdivision shall be personally served upon the respondent homeowner or resident with the petition for injunction and notice of hearing thereon. The restraining order shall remain in effect for a period not to exceed 15 days, except as modified or sooner terminated by the court.

(d) Within 15 days of filing the petition for an injunction, a hearing shall be held thereon. If the court, *by clear and convincing evidence*, finds the existence of a *continuing or recurring violation* of a reasonable rule or regulation of the mobilehome park, the court shall issue an injunction prohibiting the violation. The duration of the injunction shall not exceed three years.

(e) However, not more than three months prior to the expiration of an injunction issued pursuant to this section, the management of the mobilehome park may petition under this section for a new injunction where there has been recurring or continuous violation of the injunction or there is a threat of future violation of the mobilehome park's rules upon termination of the injunction.

(f) Nothing shall preclude a party to an action under this section from appearing through legal counsel or in propria persona.

(g) The remedy provided by this section is nonexclusive and nothing in this section shall be construed to preclude or limit any rights the management of a mobilehome park may have to terminate a tenancy.

(Civ. Code, § 798.88 [emphasis added].)

Civil Code section 798.56 sets forth the reasons for which a mobilehome tenancy may be terminated by the management. As relevant to this action, the reasons include:

(1) Failure of the homeowner or resident to comply with a local ordinance or state law or regulation relating to mobilehomes within a reasonable time after the

homeowner receives a notice of noncompliance from the appropriate governmental agency.

...

(4) Failure of the homeowner or resident to comply with a reasonable rule or regulation of the park that is part of the rental agreement or any amendment thereto.

No act or omission of the homeowner or resident shall constitute a failure to comply with a reasonable rule or regulation unless and until the management has given the homeowner written notice of the alleged rule or regulation violation and the homeowner or resident has failed to adhere to the rule or regulation within seven days. However, if a homeowner has been given a written notice of an alleged violation of the same rule or regulation on three or more occasions within a 12-month period after the homeowner or resident has violated that rule or regulation, no written notice shall be required for a subsequent violation of the same rule or regulation.

(Civ. Code, § 798.56, subd. (a).)²

In the Petition, Petitioner cites Park Rule 11(A) and 11(D).

Park Rule 11(A) provides:

Tenant shall maintain their Mobilehome and Space/Lot, including all structures, all landscaping, improvements and all other things attached to or placed thereon in good condition and repair and in a neat, clean, attractive and well kept fashion. All concrete, asphalt and other surfaces shall be kept clean and maintained free of oil, and all other sticky or oily substances and maintained in good repair and condition.

Park Rule 11(D) provides:

NOTHING may be stored under the Mobilehome. Nothing may be stored on the Space except in the Mobilehome or in an approved storage shed. No storage is permitted on outside patio, decks, stairways, driveways or around the perimeter of the Mobilehome. Only standard patio furniture is permitted on patio/porch.

(Emphasis in original.)

Lastly, Cal. Code of Regulations Title 25, section 1120 sets the health, safety, and fire-prevention rules for keeping mobilehome parks free of rubbish and waste. It provides:

² Section 798.56, subdivision (d), cited by Petitioner, provides: “For purposes of this section, “financial institution” means a state or national bank, state or federal savings and loan association or credit union, or similar organization, and mobilehome dealer as defined in Section 18002.6 of the Health and Safety Code or any other organization that, as part of its usual course of business, originates, owns, or provides loan servicing for loans secured by a mobilehome.”

(a) Occupants shall keep the lot area and the area under, around, or on their unit and accessory buildings or structures free from an accumulation of refuse, rubbish, paper, leaves, brush or other combustible material.

(b) Waste paper, hay, grass, straw, weeds, litter, or combustible flammable waste, refuse, or rubbish of any kind shall not be permitted, by the park owner or operator, to remain upon any roof or on any vacant lot, open space, or common area.

(c) The park area shall be kept clean and free from the accumulation of refuse, garbage, rubbish, excessive dust, or debris.

(d) The park operator shall ensure that a collection system is provided and maintained, with covered containers, for the safe disposal of rubbish.

2. Application

Here, Respondents were given three Seven-Day Notices pursuant to Civil Code section 798.56 for their failures to comply with Park Rules 11(A) and (D) and failure to comply with California Code of Regulations Title 25, section 1120.³ The Petition alleges that Respondents failed to comply with each Seven-Day Notice. Further, on October 16, 2025, Petitioner took updated photographs of the mobilehome surroundings showing the continuous rule violations. (Exh. 9.) The Petition alleges that Respondents' violations of the Park's Rules are ongoing and continue to exist. (Petition, ¶ 16.)

Civil Code section 798.88, subdivision (d), requires "clear and convincing evidence of the existence of a continuing or recurring violation" of a rule or regulation of the mobilehome park. Here, the three Seven-Day Notices were sent on July 25, 2025, August 14, 2025, and September 29, 2025, respectively. The updated pictures of violations were taken in October 2025. The Petition was filed on August 17, 2026, ten months after October 2025. Although the verified Petition asserts that the violations are ongoing and continue to exist, the assertion is conclusory. Petitioner does not state how it knows that the violations are ongoing (*e.g.*, current photographs, observations by a park manager in July 2026). The 10-month lapse before filing the Petition interrupts the clear proof required for a recurring or continuing violation. Under these circumstances, clear and convincing evidence of the existence of a continuing or recurring violation of a rule or regulation of the mobilehome park is lacking.

For the foregoing reasons, the Court denies the Petition without prejudice.

³ Respondents were given three Seven-Day Notices pursuant to Civil Code section 798.56, subdivision (d). Subdivision (d) of section 798.56 defines "financial institution" for purposes of the section; it does not state a reason for which a mobilehome tenancy can be terminated. It appears that this citation refers to a prior version of the statute. Petitioner likely meant to refer to current subdivision (a)(4), which states that the failure of the homeowner to comply with a reasonable rule or regulation of the park is a ground for termination. (See Exhs. 3 [Seven-Day Notice sent on July 24, 2025, ¶ 3]; 5 [Seven-Day Notice sent on August 14, 2025, ¶ 3]; 7 [Seven-Day Notice sent on September 29, 2025, ¶ 3].) The defect likely does not render the Seven-Day Notices defective, however, unless Respondents can show prejudice.